

24NWCV02213 24NWCV02213

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Case Number: 24NWCV02213 Hearing Date: August 4, 2026 Dept: L

Defendants Bellflower Self

Storage, LLC and Kimberly Cabrera's Demurrer to the Second Amended Complaint is
SUSTAINED without leave to amend.

Defendants to give notice.

Background

This is a wrongful eviction
action. On July 18, 2024, Plaintiff Firpo Wycoff Carr, PhD, in pro per,
("Plaintiff") filed this action against Defendants Bellflower Self Storage, LLC
("Bellflower"), Kimberly Cabrera ("Cabrera"), (collectively, "Defendants") and
Does 1 to 50.

The Complaint alleges Plaintiff
filed a lawsuit against Defendants, LASC Case No. 24NWCV00571. Defendants
allegedly "retaliated" against him by filing two unlawful detainer suits, LASC
Case Nos. 24NWUD00730 and 24NWUD00738. The Complaint alleges that Defendants
wrongfully sued STIR Inc., Plaintiff's organization, as a California
corporation, where it is actually a 501(c)(3) non-profit organization. The crux
of the Complaint is that "Defendants breached the contract or Rental Agreement
between Plaintiff and Defendants when they illegally accessed Plaintiff's
storage unit before he vacated the premises, violating California Code, Civil
Code - CIV § 1954, and after that, fulfilled their threat." (Compl., ¶ 15.) The
Complaint alleges the following causes of action: 1) Violation of California
Civil Code § 1942.5 (Retaliatory Eviction), 2) Wrongful Eviction, 3) Breach of
Contract, and 4) Violation of California Code, Civil Code - CIV § 1954
(Landlord's Unlawful Entry). On June 4, 2024, the Court sustained Defendants'

Demurrer to the Complaint without leave to amend as to the first, second, and fourth causes of action. (6/4/24 Order.)

The Court sustained the third cause of action with 20 days' leave to amend. (See 6/4/25 Minute Order.) On June 12, 2025, Plaintiff filed the First Amended Complaint (FAC). The FAC alleges one cause of action for "Breach of Contract, Violation of California Civil Code § 1954."

On February 19, 2026, the Court granted Plaintiff's Motion for Leave to File Second Amended Complaint (SAC). (2/19/26 Minute Order.) The SAC became the operative complaint.

The SAC alleges one cause of action for breach of contract. The breach of contract action is primarily based on an incident in which Defendant Kimberly Cabrera noticed the subject unit had no lock on it during daily inspections, checked to see if anyone was in the unit, and placed a temporary lock on the unit. (See Compl., ¶¶ 73-74.) Plaintiff asserts that four provisions of the rental agreement between the parties were breached.

Defendants now demur to the SAC.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. ("Donabedian") (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a

pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the parties meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a).)

Defense counsel “took all reasonable steps to meet and confer with Plaintiff” regarding the issues in the Demurrer, but the parties could not reach a resolution. (Ferraz Decl., ¶10.)

The Court notes that Defense counsel fails to indicate the means by which the parties met and conferred. Nevertheless, the Court will address the merits of the Demurrer in interests of judicial efficiency.

Discussion

Defendants demur on grounds that the first cause of action fails to state fact to constitute a cause of action and is uncertain.

Standing/Existence of a Contract

First, Defendants argue that Plaintiff was not party to the subject rental agreement attached to the SAC as Exhibit A. Further, Exhibit J to the SAC is a photograph of a debit card issued to STIR, which Plaintiff alleges was used to pay the rent for the storage units. (SAC, ¶ 26, Exhs. J-K.) Thus, Plaintiff has no standing to sue for breach of contract under the rental agreement.

In opposition, Plaintiff argues that, once STIR was terminated, Plaintiff became the operative tenant on the rental agreement by virtue of the fact that he occupied the unit for over two decades. (SAC, ¶¶ 23-28.) Plaintiff cites to “California Code Section 1940”

and “California Code Section 1940.1.”

The SAC alleges that

“Plaintiff signed a Rental Agreement with Defendant Bellflower Self Storage, 14822 Lakewood Blvd, Bellflower, California, 90706 (“Property” or “Facility”) around 1997. On August 22, 2020, Plaintiff, an agent of STIR Inc., a California corporation, who is not a party in the instant case, replaced himself with STIR Inc. on the Rental Agreement as the tenant for tax purposes.” (Compl., ¶ 14.) When STIR Inc. (hereinafter, “STIR”) was terminated, Plaintiff “became a live-in tenant in practice. . .” (Compl., ¶ 15.)

The Court may rely on

exhibits as an extension of the allegations in determining that a defense exists on the face of the complaint. (See *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 “[T]o the extent the factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits.”).)

The Court finds that

Plaintiff is not party to the subject rental agreement. (SAC, Exh. A.) The rental agreement names STIR as the tenant, while Plaintiff is only listed as the person “in care of” STIR. Further, Civil Code section 1940 and 1940.1 are inapplicable. Section 1940 pertains to tenancy regulations generally and section 1940.1 pertains to residential hotels. No legal authority supports Plaintiff's position that he automatically became the tenant on the agreement by virtue of the parties' transactional history.

Thus, Plaintiff lacks

standing to enforce the rental agreement as a non-party.

Breach of Contract

Defendants further argue that,

even if Plaintiff has standing, the SAC fails to allege any breach of the rental agreement. The SAC alleges that Defendant Cabrera placed a lock on Unit 159 after observing that the unit was unsecured. Defendant Cabrera emailed Plaintiff stating that a lock had been installed that morning on unit 159 “to secure the tenant's belongings” (SAC, ¶ 74). The lease provides that the landlord requires the tenant to provide a disc lock and key for the Premises

which tenant deems sufficient. (SAC, ¶ 76). Further, the SAC alleges that, the next day, Defendant Cabrera emailed Plaintiff that the lock had been removed pursuant to his request. (SAC, ¶ 80.) The SAC fails to allege how exactly Defendant Cabrera's actions constitute a breach of the rental agreement. Further, the SAC fails to allege that Plaintiff suffered damages as a result of the temporary lock installation.

In opposition, Plaintiff argues that the SAC adequately describes how Defendant Cabrera breached the following provisions of the rental agreement:

- [Paragraph

7] INSURANCE: Tenant shall bear the risk of loss or damage which would have been covered under the above mentioned fire and extended coverage insurance policy. Tenant hereby releases Landlord and its agents, authorized representatives and employees. . .from any and all claims for damages or loss to the personal property in, on, or about the Premises.

- [Paragraph

12] DENIAL OF ACCESS: If rent or other charges are ten (10) or more days past due Landlord may deny Tenant access to the rented self-storage space.

- [Paragraph

15] LOCK: PADLOCKS AND COMBINATION TYPE LOCKS ARE NOT PERMITTED. We require that tenant shall provide at tenants expense a disc lock and key for the Premises which Tenant, in Tenant's sole discretion. Tenant shall not provide Landlord or Landlord's agents with a key to Tenant's lock.

- [Paragraph

16] RIGHT TO ENTER, INSPECT AND REPAIR PREMISES: Tenant shall grant Landlord [sic] Landlord's agents or the representatives of any governmental authority, including police and fire officials, access to the Premises upon three days prior written notice to Tenant.

(SAC, ¶¶ 75-83.)

The Court finds that the SAC fails to allege any cognizable breach of the rental agreement. According to the rental agreement, all tenants were required to use a disk lock. (See SAC, ¶ 76, Exh A.) Noticing that there was no lock on the subject unit, Defendant Cabrera

put a disc lock on the unit on May 22, 2024, and removed the lock at Plaintiff's request the next day. (SAC, ¶¶ 74, 80.) The Court is not persuaded by Plaintiff's interpretation of breach—i.e., that Plaintiff was denied access by the temporary lock, that Defendants entered/inspected the unit without notice, etc. There is no indication that Defendant Cabrera entered the unit, but only that she opened the door to check if anyone was inside before securing the unit.

Lastly, even if a breach occurred, the Court finds that the SAC only alleges in a conclusory manner that "Defendants' actions have caused Plaintiff's detriment and harm, and damages legally and proximately caused by Defendants' actions, in an amount to be shown according to proof at trial." (SAC, ¶ 95.) As noted by Defendant, there are no allegations that Plaintiff "was trapped inside the premises or that he incurred any actual expense or inconvenience" as a result of the temporary locking, for example. (Dem., 5:11-12.)

Thus, the Court finds that the breach of contract cause of action fails to state a claim.

Defendant Cabrera

Defendants further argue that Defendant Cabrera is an improper defendant because she was not a party to the rental agreement. Defendant Cabrera cannot be sued in her individual capacity for alleged acts she committed as an agent for Defendant Bellflower.

In opposition, Plaintiff argues that Defendant Cabrera both acted in her own individual capacity and in the capacity of an agent of Defendant Bellflower, pursuant to language in her email. Plaintiff asserts that Defendant Cabrera committed independent acts constituting trespass and violation of Labor Code section 2865.

"[A]gents are protected from vicarious liability for the torts of their principals, but are held responsible for their own actions that constitute a tort [...]." (*Peredia v. HR Mobile Services, Inc.* (2018) 25 Cal.App.5th 680, 693.)

The Court finds that Defendant Cabrera cannot be held personally liable where 1) she was acting as an agent

for Defendant Bellflower, and it is found that Bellflower committed no breach of contract, and 2) the SAC contains no allegations that Defendant Cabrera committed any tort. The Court may not consider allegations or theories offered in the opposition, as they are not within the four corners of the SAC. (See *Donabedian*, supra, 116 Cal.App.4th at p. 994.)

Conclusion

The Court is not persuaded the outlined deficiencies can be cured with amendment.

Based on the foregoing,
Defendants' Demurrer to the SAC is sustained without leave to amend.